

24SMCV04081 24SMCV04081

County: los-angeles

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Case Number: 24SMCV04081 Hearing Date: September 10, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

PETER STEINLAUF,

Plaintiff,

v.

RT ABBOTT CONSTRUCTION, INC., et al.,

Defendants.

Case No.: 24SMCV04081

Hearing Date: September 10, 2026

[TENTATIVE] ORDER RE:

DEFENDANT CRYSTAL CLEAR GLASS,

INC.'S AMENDED APPLICATION

FOR GOOD FAITH SETTLEMENT

DETERMINATION

BACKGROUND

This is a construction defect case. Plaintiffs are the owners of a residential property located at 2201 Duxbury Circle, Los Angeles, CA ("Property"). Plaintiffs hired RT Abbot Construction, Inc. as the general contractor to demolish their existing house and construct a new home with additional hardscape and landscape. Plaintiffs also hired Clearflo Pools, Inc. to build a pool on the property, and Clear Glass, Inc. to install glass railings at the Property, including at the pool and the balconies and decks of the house.

Plaintiffs have sued Abbott, Clear Glass and others, alleging causes of action for Breach of Contract, Negligence, Breach of Implied Warranty, Intentional Misrepresentation, Negligent Misrepresentation, and Strict Products Liability. The only causes of action asserted against Clear Glass are Breach of Contract, Negligence, and Breach of Implied Warranty.

Abbott filed a Cross-Complaint against Clear Glass and other sub-contractors (the subcontractor cross-defendants), alleging causes of action for Express Indemnity, Equitable Indemnity, Implied Indemnity, Breach of Contract Defense, Breach of Implied Warranty, Breach of Express Warranty, Declaratory Relief, and Negligence.

Plaintiffs assert a variety of construction defects at the Subject Property, including the following claims that potentially implicate Clear Glass' work: (1) the glass railings at the pool were installed improperly and are not adequate for fall protection; (2) missing bolts in the clamps for the glass allow water to intrude into the pool trough on which the railing is mounted; and (3) the glass railings at balconies and decks are not adequate for fall protection and create a life safety condition.

Plaintiffs allocate 65% of the estimated \$433,098 cost to replace the glass railings throughout the property to Clear Glass, which totals \$281,514. In addition, Plaintiffs allocate 15% of the estimated \$2.35 million in pool reconstruction costs to Clear Glass, totaling \$352,689. Plaintiffs also allocate a small portion of demolition and other overhead costs associated with all repairs contemplated at the Subject Property. Plaintiffs' allocations to Clear Glass total \$2 million.

Plaintiffs settled with Abbott, and Abbott assigned its Cross-Complaint against the subcontractor cross-defendants to Plaintiffs, which includes a claim for defense fees (the "Abbott Assigned Claims"). Clear Glass has also agreed to settle with Plaintiffs for \$750,000, which includes Plaintiffs' claims and the Abbott Assigned Claims.

This hearing is on Clear Glass' application for a good faith determination pursuant to Code of Civil Procedure §877.6. Clear Glass argues that its settlement sum is "an approximation of [its] potential liability in this matter." There was no opposition filed as of the posting of this tentative ruling.

LEGAL STANDARD

Under Code of Civil Procedure § 877.6, "[a]ny party to an action in which it is alleged that two or more parties are joint tortfeasors or co-obligors on a contract debt shall be entitled to a hearing on the issue of the good faith of a settlement entered into by the plaintiff or other claimant and one or more alleged tortfeasors or co-obligors." (Code Civ. Proc. § 877.6(a)(1).) "The issue of the good faith of a settlement may be determined by the court on the basis of affidavits served with the notice of hearing, and any counter-affidavits filed in response, or the court may, in its discretion, receive other evidence at the hearing." (Code Civ. Proc. § 877.6(b).)

Section 877.6 requires "that the courts review [settlement] agreements made under its aegis to insure that the settlements appropriately balance the . . . statute's dual objectives" of (1) providing an "equitable sharing of costs among the parties at fault" and (2) encouraging parties to resolve their disputes by way of settlement. (Tech-Bilt, 38 Cal.3d at 494.)

"A determination by the court that the settlement was made in good faith shall bar any other joint tortfeasor or co-obligor from any further claims against the settling tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault." (Code Civ. Proc. § 877.6(c).) The party asserting the lack of good faith shall have the burden of proof on that issue. (Code Civ. Proc. § 877.6(d).)

In Tech-Bilt, the California Supreme Court set forth the following factors for evaluating whether a proposed settlement was made in good faith: (1) a rough approximation of plaintiffs' total recovery and the settler's proportionate liability; (2) the amount paid in settlement; (3) the allocation of settlement proceeds among plaintiffs; (4) discount for settlement before trial; (5) the financial conditions and insurance policy limits of settling defendants; and (6) the existence of collusion, fraud, or tortious conduct aimed to injure the interests of non-settling defendants. (38 Cal.3d at 499.)

DISCUSSION

Clear Glass' application does not comply with California Rules of Court, Rule 3.1382 which requires that "[t]he notice of motion or application for determination of good faith settlement must list each party and pleading or portion of pleading affected by the settlement and the date on which the affected pleading was filed." Here, Clear Glass' application seeks a dismissal of "pending claims and Cross-Complaints against [Clear Glass], specifically including the Cross-Complaint of RT ABBOTT CONSTRUCTION, INC. filed on December 27, 2024." It is unclear based on Clear Glass' application whether there are pending claims and Cross-Complaints against Clear Glass, besides the one filed by Abbott. Accordingly, the Court denies Clear Glass' application without prejudice.

IT IS SO ORDERED.

DATED: September 10, 2026 _____

Edward B. Moreton, Jr.

Judge of the Superior